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SCOTT v. STANSFIELD.

June 3.

Slander—County Court Judge—Words spoken by, while sitting in capacity of Judge—Malice—Irrelevance.

Plea, to a declaration for slander, that the defendant was a county court judge, and the words complained of were spoken by him in his capacity as such judge, while sitting in his court, and trying a cause in which the present plaintiff was defendant. Replication, that the said words were spoken falsely and maliciously, and without any reasonable, probable or justifiable cause, and without any foundation whatever, and not bonâ fide in the discharge of the defendant's duty as judge, and were wholly irrelevant in reference to the matter before him:—

Held, that the replication was bad, and the action not maintainable.

DECLARATION, for that the plaintiff carried on the business of an accountant and scrivener, and the defendant falsely and maliciously, and without reasonable or justifiable cause, and not on any justifiable occasion, spoke and published of the plaintiff, of and concerning him in relation to his said business and the carrying on and conducting thereof, the words following, that is to say: "You," meaning the plaintiff, "are a harpy, preying on the vitals of the poor."

2nd plea: that before and at the time when the alleged grievance was committed, the defendant was the judge of a certain court of record, being the County Court of Yorkshire, holden at Huddersfield, and at the time when he did what was complained of, the defendant was sitting in the said court, and acting in his capacity as such judge as aforesaid, and was as such judge hearing and trying a cause in which the now plaintiff was defendant, the hearing and determination of which was within the jurisdiction of the said court; and during the said trial the now defendant, in his capacity as such judge, did, as such judge sitting as aforesaid, speak and publish the said words of which the plaintiff complains, which is the supposed grievance above complained of.

Replication to the 2nd plea: that the said words so spoken and published by the defendant as aforesaid, were spoken falsely and maliciously, and without any reasonable, probable or justifiable cause, and without any foundation whatever, and not bonâ fide in discharge of his duty as judge as aforesaid, and were wholly uncalled for, immaterial, irrelevant, and impertinent, in reference to,

or in respect of, the matters before him, and were wholly unwarranted on the said occasion, of all which premises the defendant had notice before and at the time of the committing of the said grievance, and then well knew.

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Demurrer and joinder.

Quain, Q.C. (Kemplay with him), in support of the demurrer. The plea and replication taken together raise the question whether the defendant is liable to an action in respect of the words mentioned in the declaration, such words having been spoken by him in his capacity of judge, but spoken falsely, maliciously and irrelevantly. There is no authority for the position that an action will lie against a judge for anything done by him while acting in the exercise of his jurisdiction. The remedy for any official misconduct on the part of the defendant is by application to the Lord Chancellor for his removal. The principle which governs these cases is laid down in the case of *Floyd v. Barker*. (1) That principle has been followed in a long series of decisions, see *R. v. Skinner* (2); *Miller v. Hope* (3); *Jekyll v. Sir John Moore* (4); *Revis v. Smith* (5); *Henderson v. Broomhead* (6); *Fray v. Blackburn*. (7) It is quite clear from these cases that no action will lie against a judge for a judicial act, though it be alleged to have been done maliciously and corruptly. The true ground of a judge's exemption from actions is to be found, with a review of the older authorities, in the judgment of Chief Justice Kent, in the case of *Yates v. Lansing*. (8) In the case of *Thomas v. Churton* (9) it was held, that a coroner holding an inquest is not liable to an action for words falsely and maliciously spoken by him in his address to the jury; but Cockburn, C.J., there said (10): "I am reluctant to decide, and will not do so until the question comes before me that if a judge abuses his judicial office by using slanderous words, maliciously and without reasonable and probable cause, he is not to be liable to an action." The present replication is probably founded upon that dictum.

(1) 12 Rep. 23.

(2) Lofft, 55.

(3) 2 Shaw, Sc. App. Cases, 125.

(4) 2 B. & P. (N. R.) 341.

(5) 18 C. B. 126. 2 Jan MS 614

(6) 4 H. & N. 569. 5 Jan MS 1175

(7) 3 B. & S. 576.

(8) 5 Joh. 282; 9 Joh. 395.

(9) 2 B. & S. 475. 8 Jan MS 795

(10) 2 B. & S. at p. 479. 8 Jan MS 795

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Manisty, Q.C., contra. The decisions cited are inapplicable to the present case. For it was not alleged in any of those cases, that the judge had said, maliciously and without reasonable cause, what was altogether irrelevant to the matter before him. In Addison on Torts, 2nd ed., p. 547, the law is thus laid down: "A judge, therefore, is not answerable for slander spoken by him in the exercise of his judicial functions in reference to a matter before him; but, if he goes out of his way to make slanderous attacks on the character of private persons in respect of matters not before him, and into which he has no jurisdiction to inquire, he will be responsible, like any other individual, for the consequences." The cases cited in support of that proposition are *Lewis v. Levi* (1), and *MacGregor v. Thwaites* (2); but, it must be admitted, they do not go far enough to support the plaintiff's contention. It is, however, clear, that the fact of a judge's having jurisdiction to try a particular case will not justify his going out of his way, and, with reference to a subject wholly irrelevant, making falsely and maliciously slanderous statements affecting private character. It is then just as if he were not acting in his judicial character at all. He cannot abuse his office for the purpose of doing with impunity, under colour of it, that which has no connection with it and which in a private individual would be actionable. In the case of *Houlden v. Smith* (3), it was held, that a judge of a county court is answerable for an act done by his command, when he has no jurisdiction, and is not misinformed as to the facts on which jurisdiction depends.

KELLY, C.B. I am of opinion that our judgment must be for the defendant. The question raised upon this record is whether an action is maintainable against the judge of a county court, which is a court of record, for words spoken by him in his judicial character and in the exercise of his functions as judge in the court over which he presides, where such words would as against an ordinary individual constitute a cause of action, and where they are alleged to have been spoken maliciously and without probable cause, and to have been irrelevant to the matter before him. The ques-

(1) 27 L. J. (Q.B.) 282.

(2) 3 B. & C. 24.

(3) 14 Q. B. 841.

2d B.L. 2537; 4 Jan. 1870

tion arises, perhaps, for the first time with reference to a county court judge, but a series of decisions uniformly to the same effect, extending from the time of Lord Coke to the present time, establish the general proposition that no action will lie against a judge for any acts done or words spoken in his judicial capacity in a court of justice. This doctrine has been applied not only to the superior courts, but to the court of a coroner and to a court martial, which is not a court of record. It is essential in all courts that the judges who are appointed to administer the law should be permitted to administer it under the protection of the law independently and freely, without favour and without fear. This provision of the law is not for the protection or benefit of a malicious or corrupt judge, but for the benefit of the public, whose interest it is that the judges should be at liberty to exercise their functions with independence and without fear of consequences. How could a judge so exercise his office if he were in daily and hourly fear of an action being brought against him, and of having the question submitted to a jury whether a matter on which he had commented judicially was or was not relevant to the case before him? Again, if a question arose as to the bona fides of the judge it would have, if the analogy of similar cases is to be followed, to be submitted to the jury. Thus if we were to hold that an action is maintainable against a judge for words spoken by him in his judicial capacity, under such circumstances as those appearing on these pleadings, we should expose him to constant danger of having questions such as that of good faith or relevancy raised against him before a jury, and of having the mode in which he might administer justice in his court submitted to their determination. It is impossible to overestimate the inconvenience of such a result. For these reasons I am most strongly of opinion that no such action as this can, under any circumstances, be maintainable.

MARTIN, B. I am also of the same opinion. It seems to me quite clear that words spoken under the circumstances stated in these pleadings are not the subject of an action of slander. The plea states that the defendant at the time when he spoke the words complained of, was sitting as the judge of a court of record, and spoke them while acting in his capacity of judge, and trying

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a cause within his jurisdiction in which the present plaintiff was defendant. If words spoken under such circumstances were the subject of an action of slander, the most mischievous consequences would ensue; no judge, as my Lord has pointed out, would then be able freely to administer justice, for if it were alleged, as is the case here, that he spoke falsely and maliciously, and not bonâ fide in the discharge of his duty, and that what he said was irrelevant to the matter in hand, a jury would have to determine the question whether what he said in the course of a case which he had jurisdiction to try was or was not said under the circumstances so alleged. What judge could try a case with any degree of independence if he was to be afterwards subject to have his conduct in the administration of justice commented upon to a jury, and the propriety of it determined by them? It appears to me that the opinion expressed by Chief Justice Kent, in the American case cited, puts this matter upon its proper foundation, and states that which is both sound law and good sense in reference to it. I do not think we are really deciding anything new, for to my mind the decisions of the Court of Queen's Bench have gone the full length of our present decision.

BRAMWELL, B. I am entirely of the same opinion. I will only quote a remark made by the late Lord Chief Baron in the case of *Gelen v. Hall*. (1) He there says: "The question is not whether a magistrate who, without any evidence, wilfully and maliciously convicts a person brought before him, is liable to an action, but whether a man who has really acted as a judge shall have the question tried before a jury." There might, first of all, be a question as to what the words uttered really were, for the defendant might get into the box and deny having used the words imputed to him, and the jury might find against him: then it would be a question whether they were spoken bonâ fide. That question also would have to be determined by a jury if such an action as the present were maintainable. I think there would be manifest inconvenience in such a state of things.

CHANNELL, B. I am of the same opinion. If the facts alleged

(1) 2 H. & N. at p. 393.

by the replication were true, no doubt there would be misconduct on the part of the defendant. It does not follow from the decision which we now pronounce, that a county court judge can so misconduct himself with impunity. If a county court judge be guilty of misconduct in the exercise of his office, the Lord Chancellor may, if he think it expedient, remove him from such office, but no action will, in my opinion, lie against him for anything done by him in his judicial capacity. For the benefit of the public and the due administration of justice, the law provides that a judge is to be so far free and unfettered in the exercise of his office as not to be liable to an action for what he does in the capacity of judge, and so placed under restraint in the discharge of his duty.

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Judgment for the defendant.

Attorney for plaintiff: *T. Thackery Calvert.*

Attorney for defendant: *H. B. Clarke.*

BIRD v. ELWES.

May 27.

*Landlord and Tenant—Agreement to Repair—Agreement to pay Charges—
Nuisances Removal Act, 1855 (18 & 19 Vict c. 121), s. 19.*

By an agreement of demise of a house and grounds, the landlord undertook to keep the premises in repair, and to pay all rates, taxes, and charges which might be payable in respect of the premises. In the grounds was a piece of ornamental water, in which during the tenancy an accumulation of mud caused at one spot a public nuisance, and at another spot a nuisance to the tenant, and elsewhere choked up the stream. The tenant, being summoned under the Nuisances Removal Act, 1855, in respect of the public nuisance, employed a contractor to clear out the whole stream to the satisfaction of the inspector of nuisances. Afterwards, at the hearing of the summons, an order was made on him to abate the public nuisance. The whole of the mud was cleared out under the contract, that part which constituted the public nuisance being removed partly before and partly after the date of the order:—

Held, first, that the landlord was not, under his agreement to repair, bound to cleanse the ornamental water.

Secondly, that no charge on the premises in respect of any part of the work done had been created by the proceedings under the Nuisances Removal Act, 1855.

SPECIAL case.

On the 3rd of March, 1862, the defendant, by an agreement in writing, let to the plaintiff a house (called Stoke College) and